

19STCV17761 19STCV17761

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Case Number: 19STCV17761 Hearing Date: September 10, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Motion to Enforce

Settlement

The Motion to Enforce Settlement is denied.

BACKGROUND

Plaintiffs Vahe Menachkanian (Menachkanian) and Maryet Manaserian (Manaserian) (collectively, "Plaintiffs") filed this action against Simon M. Keushkerian, M.D., Faisal A. Khan, M.D., and Glendale Adventist Medical Center (GAMC), alleging that a laparotomy sponge was left in Menachkanian's body following colectomy surgery performed at GAMC.

The causes of action are: (1) Professional Negligence (Medical Malpractice); and (2) Loss of Consortium.

GAMC filed a Motion to Enforce Settlement, a Notice of No Opposition, and a supplemental declaration. No Opposition was filed.

On September 23, 2024, Plaintiffs and GAMC executed a Settlement Agreement and Release of All Claims (the Agreement), and on January 22, 2025, the Court entered Plaintiffs' Request for Dismissal with prejudice as to the entire action. GAMC filed the Motion together with an Application to File Documents Under Seal, supporting both with a copy of the Agreement redacted at its payment provisions. On July 28, 2026, the Court continued the hearing and ordered GAMC to lodge a complete, unredacted copy of the Agreement conditionally under seal. On August 27, 2026, the Court denied the Application and continued the hearing again. GAMC then filed an unredacted copy of the

Agreement in the public record.

LEGAL STANDARD

Code of Civil Procedure section 664.6 authorizes the Court, on motion, to enter judgment on the terms of a written settlement signed by the parties to pending litigation. (Code Civ. Proc., § 664.6, subd. (a).) “ In ruling on a motion to enter judgment the trial court acts as a trier of fact. It must determine whether the parties entered into a valid and binding settlement.” (Kohn v. Jaymar-Ruby, Inc. (1994) 23 Cal.App.4th 1530, 1533.)

The statute supplies a summary means of enforcing a settlement as written, and “nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.” (Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 810.) The Agreement is a contract, and the Court ascertains its meaning from the writing, reading the whole together so that each part helps interpret the others. (Civ. Code, §§ 1639, 1641.)

ANALYSIS

I. Signed Writing

GAMC contends that the Agreement is a binding written settlement satisfying the statute because Plaintiffs and their counsel signed it.

Here, the parties reduced their settlement of this action to writing and executed it on September 23, 2024. Menachkanian and Manaserian signed the Agreement, Menachkanian initialed each of its nine pages, counsel of record for Plaintiffs approved it as to form and content, and counsel for GAMC signed it. (Kjar Sept. 4 Decl., Ex. A, at pp. 1-9.) No party contests its execution, its authenticity, or its terms. Thus, the Agreement is a valid and binding written settlement.

II. Medicare Holdback

GAMC contends that Plaintiffs materially breached the Agreement by failing to satisfy the Medicare lien and to provide proof of satisfaction, and that the Agreement entitles GAMC to send the withheld funds to the lienholders. GAMC describes the sum withheld as \$36,276.41, stating that the settlement payment

“was structured in two parts,” the second of which, “in the amount of \$36,276.41[,] was to be held back until Plaintiffs presented proof of satisfaction of Medicare liens.” (Mot., at p. 3:16-19; Kjar Decl., ¶ 4.)

However, the plain terms of the Agreement permitted GAMC to withhold \$26,000 and no more. Section 1.1 fixed the total settlement at \$162,500, payable in two parts. Section 1.2 required GAMC to pay \$136,500 to Plaintiffs and their counsel after execution and delivery of the signed Agreement, and permitted GAMC to “hold back \$26,000.00 from the settlement proceeds until these liens have been satisfied by RELEASORS.” Section 1.3 directed that the sum withheld be forwarded to Plaintiffs’ counsel once Plaintiffs present lien closure letters or other evidence that the liens are satisfied. (Kjar Sept. 4 Decl., Ex. A, at pp. 1-2, §§ 1.1-1.3.) The two payments the Agreement describes sum to the total the Agreement states.

No provision adjusts that figure to the amount Medicare later demanded. The Agreement takes up the possibility of a larger demand and assigns it to Plaintiffs, who “voluntarily accepts the risk that Medicare may demand reimbursement in excess of any amount the parties allocate to satisfying any Conditional Payment.” (Kjar Sept. 4 Decl., Ex. A, at p. 6, § 6.6.) Plaintiffs and their counsel bear the obligation to secure a final demand letter and to verify, resolve, and satisfy any Medicare reimbursement obligation. (Kjar Sept. 4 Decl., Ex. A, at pp. 3-5, §§ 2.7, 4.1, 6.3.) The Agreement states that it “contains the ENTIRE AGREEMENT between the parties.” (Kjar Sept. 4 Decl., Ex. A, at p. 8, § 9.2.)

GAMC withheld \$36,276.41, exceeding by \$10,276.41 the sum the Agreement allowed, and the check GAMC sent Plaintiffs’ counsel on January 9, 2025 fell short of the \$136,500 that section 1.2 required. (Kjar Decl., ¶ 7.) Accordingly, the Agreement capped the sum GAMC could withhold at \$26,000, and it placed the risk that Medicare would demand more on Plaintiffs.

III. Requested Relief

GAMC asks the Court to authorize it to pay \$36,276.41 directly to the Centers for Medicare & Medicaid Services, and represents that the Agreement already permits that payment: “Under the express terms of the settlement agreement, Moving Defendant is authorized to pay the holdback funds directly to Medicare as the lienholder.” (Mot., at p. 6:11-13.) No Reply was filed.

Here, nothing in the Agreement conditions GAMC'S resort to the withheld funds on an order of this Court. Section 1.4 provides: "If RELEASORS do not present the lien closure letters to RELEASEE within 90 days from the time RELEASORS receive the settlement funds, then RELEASEE is entitled to send the holdback funds to the lienholders, jointly payable to RELEASORS and the lienholders." (Kjar Sept. 4 Decl., Ex. A, at p. 2, § 1.4.) The section requires no application, no approval, and no order.

What section 1.4 permits and what GAMC requests are different things. Section 1.4 permits GAMC to send \$26,000 to the lienholders on an instrument jointly payable to Plaintiffs and the lienholders. GAMC asks the Court to authorize payment of \$36,276.41 to Medicare alone. (Mot., at pp. 6:14-21, 7:2-7.)

An order granting that request would not enforce the Agreement. It would enlarge by \$10,276.41 the sum GAMC may disburse, and it would remove Plaintiffs from an instrument the Agreement makes payable to them. Each is a material term, and neither is a term the parties agreed upon. Nothing in section 664.6 authorizes the Court to create the material terms of a settlement rather than decide what terms the parties themselves agreed upon. (Weddington Productions, Inc. v. Flick, *supra*, 60 Cal.App.4th at p. 810.) GAMC identifies no obstacle to performing the Agreement as written, and the relief it seeks is available only by rewriting it.

Accordingly, the Motion to Enforce Settlement is denied.

CONCLUSION

The Motion to Enforce Settlement is denied.